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Postal Manual Vol III

DISCLAIMER: *This booklet has been prepared strictly from an examination point of view. While every effort has been made to ensure accuracy and the inclusion of recent changes, amendments, and updates to the relevant Acts, Rules, and Regulations, this document is intended as a study aid only. Readers and students are strongly recommended to refer to official government sources or gazettes for the most reliable and authoritative information.*

Postal Manual Vol III : Discipline & Appeal

Chapter 1: Stages of Disciplinary Proceedings

1. General Procedure

The procedure laid down in the Central Civil Services (Classification, Control and Appeal) Rules, 1965, is required to be followed rigidly. Any failure in its due observance is liable to vitiate disciplinary proceedings, including the final punishment order passed.

2. First Stage: Preliminary Decision (Rule 3)

Decision to Proceed:

This stage involves the decision to proceed against an employee after making preliminary enquiries, if necessary, at the appropriate level regarding offences alleged to have been committed by them. When a report is received about the commission of an offence by an employee, the appropriate authority should decide whether or not there is justification for investigating the matter.

Preliminary Enquiry Guidelines:

- At the stage of preliminary enquiries, all available evidence and relevant documents should be collected.
- In important cases, evidence of witnesses should be reduced to writing and signed by them, if possible, in the presence of the accused employee.
- **No prior sanction** of the punishing authority is necessary for holding such a preliminary enquiry.
- The investigation report, along with the preliminary evidence collected, should be examined by the appropriate authority to decide whether a *prima facie* case exists for the initiation of formal disciplinary proceedings.

Administrative Caution:

The office responsible for the decision should generally avoid expressing any definite opinion on the merits of the final outcome of the case. If the decision is taken at a level lower than the competent disciplinary authority, all papers should be forwarded to that authority for a final decision on the initiation of proceedings. Even if it is felt that there is no justification for initiation, papers should be shown to the competent disciplinary authority for information.

Note on Suspension: At this stage, the competent authority should also examine whether the official should be placed under suspension pending disciplinary proceedings.

Chapter 2: Framing of Charges (Rule 4)

1. Issue of Charge Sheet

This stage involves the framing of charges and the issuance of a charge sheet for either a **Major Penalty** or a **Minor Penalty** in the prescribed proforma. The charge sheet should be drafted giving all details required under **Rule 14** or **Rule 16** of the CCS (CCA) Rules, 1965.

2. Principles of Drafting Charges

- **Definitiveness:** The grounds for action must be reduced to the form of a definite charge or charges.
 - **Specificity:** Charges should be clear, specific, and precise. A separate charge should be framed in respect of each separate offence.
 - **Nature of Charges:** Charges should not be of a petty nature or unnecessarily numerous.
 - **Avoid Pre-judgment:** Care must be taken ensuring no expression of opinion as to the guilt of the accused official is contained in the wording of the charge.
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3. Attachments to the Charge Sheet

1. **Statement of Imputations:** A statement of allegations on which each charge is based, including any other circumstances proposed for consideration, must invariably be attached. This statement must also be free of opinion regarding the official's guilt.
2. **Lists of Evidence:** A complete list of documents and a complete list of witnesses by whom the articles of charge are proposed to be sustained should be attached.

4. Defense Opportunity

The employee should be required, within a **reasonable time** specified in the Memorandum, to state whether he desires to be heard in person and to submit a written statement of his defense.

- **Service of Notice:** When the Memorandum of charges is sent by post, it should be enclosed in a **Registered Cover with Acknowledgement Due**.

Chapter 3: Conduct of Enquiry (Rule 5)

1. Mandatory Enquiry for Minor Penalties

While **Rule 16** generally governs minor penalties, the Government has decided that a formal enquiry (in the manner of **Rule 14**) must be held if it is proposed to:

1. Withhold increment of pay for a period exceeding **3 years**;
2. Withhold increment of pay with **cumulative effect** for any period; or
3. Impose the penalty of withholding increment likely to adversely affect the amount of **pension** admissible to the government servant.

 **LEGISLATIVE NOTE:** This aligns with the provisions of **Rule 16(1-A)** of the CCS (CCA) Rules, 1965.

2. Appointment of Enquiry Officer (EO)

In major penalty proceedings, an enquiry into charges not categorically admitted by the accused is obligatory. The disciplinary authority may hold the enquiry itself or appoint a separate Enquiry Officer.

- **Status:** The status of the Enquiry Officer should not be lower than that of the accused officer.
- **Restrictions on Appointment:** To ensure fairness, the enquiry should not be entrusted to:
 - The officer who held the preliminary enquiry and expressed a definite opinion adverse to the accused.
 - An officer directly subordinate to an officer who has already expressed an adverse opinion on the allegations.

3. Presenting Officer and Defense Assistant

- **Presenting Officer (PO):** The disciplinary authority may nominate a Presenting Officer to present the case in support of the articles of charge.
- **Defense Assistant:** The Accused Officer has the right to take assistance of another Government servant.
 - **Permission:** The accused is not required to take prior permission to engage a Government servant; intimation to the disciplinary authority suffices. However, the disciplinary authority is not responsible for ensuring the release of that Government servant.
 - **Legal Practitioner:** The accused is generally **not entitled** to engage a legal practitioner without specific permission. However, if the Presenting Officer appointed by the disciplinary authority is a legal practitioner, the accused official has an absolute right to appoint a legal practitioner.

 **LEGISLATIVE NOTE:** Per DoPT O.M. No. 11012/11/2002-Estt.(A), dated 05.02.2003, Government servants may also engage a **Retired Government Servant** as a Defense Assistant, subject to the condition that the retired officer does not have more than 7 **pending cases** at hand.

4. Enquiry Procedure

1. **Documentation:** The disciplinary authority must send copies of documents indicated in **Rule 14(6)** of CCS (CCA) Rules to the Enquiry Officer. Original documents should remain with the Presenting Officer.
2. **Plea:** Before starting, the accused must state categorically whether he pleads guilty. If not, formal enquiries commence.
3. **Discovery:** The accused may apply for the production and inspection of relevant documents in Government possession not already listed in the charge sheet.
4. **Examination:** The PO will produce documentary evidence and examine/cross-examine witnesses.
5. **New Evidence:** The Enquiry Officer may, at their discretion, allow the PO to produce new evidence before the close of the case or call for new evidence/recall witnesses themselves under **Rule 14(15)**.

5. Conclusion of Enquiry

After the disciplinary authority's witnesses are examined, the accused shall state their defense orally or in writing and produce evidence. The Enquiry Officer may examine the accused personally. Both sides may file written briefs. Based on the evidence, the Enquiry Officer will submit a report discussing the findings on each charge separately.

Chapter 4: Action on Enquiry Report (Fourth Stage)

1. Consideration of the Report

Upon receipt of the Enquiry Officer's report, the competent disciplinary authority must examine it carefully to decide whether the charges have been established and whether the Enquiry Officer's recommendations should be accepted.

- **Disagreement with EO:** If the disciplinary authority does not accept any recommendation of the Enquiry Officer, it must record its own findings, discussing the relevant evidence in support thereof.
- **Supplementary Enquiry:** The disciplinary authority may direct the Enquiry Officer to hold a supplementary enquiry for further examination of witnesses or may itself hold a supplementary enquiry, subject to the restrictions of **Rule 14(15)** of the CCS (CCA) Rules.

2. Determination of Penalty

- **Extraneous Matters:** It is improper to bring in extraneous matters, such as a bad service record not connected with the enquiry, for establishing the charge. However, past records may be considered when deciding the *quantum* of the penalty.
- **Decision:** Once the charges are held established, the authority decides the quantum of penalty justified by the proven charges and issues the final punishment order.

3. Procedure for Minor Penalty Proceedings

In cases where proceedings are for a minor penalty, the disciplinary authority should pass final orders after giving due consideration to the defense, unless a formal enquiry is required under **Rule 16(1-A)**.

4. Final Order Format

The order of punishment must be framed in a proper judicial form. It should contain a sufficient record of the evidence and the findings. Specifically, the order must include:

1. The facts and history leading to the charges.
2. The charges in detail.
3. A record of the defense and evidence (including oral evidence) for each charge.
4. A statement of findings in respect of each charge.

A copy of the order must be furnished to the employee under receipt. If the disciplinary authority acted as the enquiring authority, a copy of its own report must accompany the order.

Chapter 5: Consultations (CVC & UPSC)

1. Consultation with UPSC (Rule 7)

In cases where consultation with the Union Public Service Commission (UPSC) is necessary, the disciplinary authority must forward the enquiry report and original records to the Commission. Final orders can only be passed after receipt of the Commission's advice.

- **Copy to Accused:** A copy of the Commission's advice must be forwarded to the accused officer.

2. Consultation with Central Vigilance Commission (Rule 12)

In vigilance cases relating to officers under CVC jurisdiction (e.g., Group A Officers), the Commission must be consulted at the following stages:

1. Preliminary Stage:

- If the authority decides a preliminary enquiry is **not** necessary, the complaint (unless anonymous/pseudonymous) and the authority's views must be sent to CVC for advice.
- If, after preliminary enquiry, the authority concludes **no action** is necessary, the case must be reported to CVC for advice.
- If the authority proposes to institute proceedings, the investigation report and records must be sent to CVC for advice on further action.

2. Institution of Proceedings:

- If CVC advises formal proceedings, it will specify whether they should be for a **Major** or **Minor** penalty. The Department then assumes responsibility for drafting the charge sheet.

3. Post-Enquiry Stage:

- **Major Penalty:** The Enquiry Officer's report and full records must be forwarded to CVC for advice before a final decision is taken.
- **Minor Penalty:** The case should be referred to CVC after receiving the written statement of defense. The disciplinary authority should indicate its **provisional conclusions** in this reference.

3. Distinction: Vigilance vs. Non-Vigilance Cases

Consultation with the CVC is required only for cases involving an allegation of **corruption or improper motive**.

- **Exceptions:** Cases involving purely administrative or technical lapses (e.g., late attendance, insubordination, negligence, lack of supervision) generally **do not** require CVC reference.

- **Ambiguity:** If it is difficult to distinguish, the administrative authority exercises discretion. Broadly, any case with a *prima facie* vigilance angle or potential vigilance angle should be referred.
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Chapter 6: Suspension (Part I: General Rules)

1. Authority to Suspend (Rule 13)

The appointing authority, or any authority to which it is subordinate, or any authority competent to impose any penalty specified in **Rule 11** of CCS (CCA) Rules, may place a Government servant under suspension under the circumstances laid down in **Rule 10**.

- **Lower Authority:** If the order is passed by an authority lower than the appointing authority, they must report the circumstances to the appointing authority immediately.
- **Verification:** Before issuing the order, the authority must verify its competence. An unauthorized suspension order may lead to the grant of full pay and allowances for the period.
- **Form:** Suspension should never be ordered orally.

2. Borrowed Services (Rule 15)

When an employee's services are borrowed/lent between departments or governments, the **borrowing authority** can suspend the official under **Rule 20** of the CCS (CCA) Rules. The lending authority must be informed forthwith.

3. Review of Suspension (Rule 17)

While suspension may be justified initially, the suspending authority must ensure through **periodical reviews** that the period is kept to the barest minimum.

- **Timeline for Charge Sheet:** Every effort should be made to serve the charge sheet within **3 months** of the date of suspension.

- **Extended Delay:** If the charge sheet is not served within 3 months, the matter should be reported to the next higher authority with reasons. The total period of suspension (investigation + proceedings) should not ordinarily exceed **6 months**.
- **Extension:** In exceptional cases exceeding this limit, suspension may be continued only under the specific order of the authority immediately superior to the disciplinary authority.

 **LEGISLATIVE NOTE:** Statutory Update on Suspension Review:

Pursuant to the amendment of Rule 10 of CCS (CCA) Rules (vide Notification G.S.R. 2, dated 23.12.2003) and the Supreme Court judgment in Union of India v. Dipak Mali:

1. An order of suspension shall be valid only for **90 days** unless extended after a review by the Reviewing Committee.
2. The first review must be conducted **before the expiry of 90 days**.
3. Subsequent reviews must be conducted before the expiry of the extended period (usually every **180 days**).
4. If the review is not conducted within the prescribed time, the suspension order **lapses automatically**.

4. Arrest and Conviction (Rule 18)

It is the duty of a Government servant who is arrested or convicted by a Court of Law to inform their official superior of the facts and circumstances immediately. Failure to do so is regarded as **suppression of material information**, rendering the official liable to disciplinary action on this ground alone, separate from the underlying offense.

5. Headquarters During Suspension (Rule 20, 21)

- **Location:** The station of posting immediately before suspension is the headquarters. The disciplinary authority may fix a different place in the "interest of public service".

- **Leaving HQ:** A suspended officer is subject to all service conditions and **must not leave their headquarters** without the permission of the disciplinary authority.
 - **Change of HQ:** A change may be ordered at the officer's request if it entails no extra expenditure (T.A.) to the Government and causes no difficulty in the investigation.
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Chapter 7: Subsistence Allowance & Recoveries

1. Entitlement to Subsistence Allowance (Rule 25)

A Government servant under suspension is entitled to subsistence allowance from the date of suspension at the rate prescribed in **Fundamental Rule (FR) 53**.

- **Review of Allowance:** If the period of suspension exceeds **3 months**, the suspending authority may vary the rate of subsistence allowance for the subsequent period.
- **Variation Limits (Rule 26):** After the first review (or subsequent reviews), the authority may increase or decrease the allowance. However, such increase or decrease at any stage must not exceed **50%** of the subsistence allowance granted initially.

2. Treatment of Suspension Period upon Minor Penalty

Where departmental proceedings against a suspended employee (instituted for a major penalty) finally end with the imposition of a **minor penalty**, the suspension is generally considered wholly unjustified in terms of **FR 54-B**. Consequently, the employee concerned should be paid **full pay and allowances** for the period of suspension by passing a suitable order under FR 54-B.

3. Recoveries from Subsistence Allowance (Rules 28-30)

Recoveries from the subsistence allowance are categorized as follows:

A. Compulsory Recoveries (Rule 28)

1. Income Tax and Super Tax.
2. House Rent, Electricity, Water, and other allied charges.
3. Repayment of loans and advances taken from the Government (at rates fixed by the Head of Department).
4. CGEGIS (Central Government Employees Group Insurance Scheme) subscription.

B. Optional Recoveries (Rule 29)

Made only with the written consent of the suspended officer:

1. PLI (Postal Life Insurance) premia.
2. Dues of Co-operative Stores and Co-operative Societies.
3. Refund of advances taken from the General Provident Fund (GPF).

C. Prohibited Recoveries (Rule 30)

The following must NOT be recovered from subsistence allowance:

1. Subscription to GPF.
2. Amounts due on court attachments.
3. Recoveries of loss to Government for which the suspended officer has been held responsible.

 **LEGISLATIVE NOTE:** As per **Rule 29** of the CCS (Pension) Rules (now CCS Pension Rules, 2021), recovery of pecuniary loss from subsistence allowance is generally not permissible unless the official furnishes written consent or specifically requests it to reduce future liability.

4. Mode of Payment (Rule 41)

For non-gazetted officials, subsistence allowance can be remitted via **Service Money Orders** or credited directly to their salary bank accounts as per current disbursement procedures.

Chapter 8: Allowances & Pay Revision During Suspension

1. House Rent Allowance (HRA) (Rule 33)

- **Rent-Free Accommodation:** A Government servant occupying rent-free accommodation ceases to enjoy this concession from the date of suspension. However, they are not required to vacate the quarters unless the accommodation is specifically attached to a designated post. Rent at the usual rate will be recovered.
 - *Restoration:* If the employee is ultimately allowed full pay and allowances for the suspension period, the rent-free concession is restored, and any rent recovered will be refunded.
- **HRA Eligibility:** If the employee vacates the quarters, they are entitled to House Rent Allowance (HRA) only if HRA is otherwise admissible at the headquarters of their suspension. The allowance is calculated based on the **pay** the official was drawing immediately before suspension (not on the reduced subsistence allowance).

2. Revision of Pay Scale (Rule 35)

If the scale of pay of the post held by a suspended Government servant is revised with retrospective effect (from a date prior to suspension), the official is entitled to exercise their option under **FR 23**, even if the option period falls within the suspension.

- **Benefit:** The official is entitled to the benefit of the pay increase for the period before suspension and a consequential increase in the subsistence allowance for the period of suspension.

3. Effect of Dismissal/Removal on Allowances (Rule 34)

If a Government servant is dismissed, removed, or compulsorily retired and is subsequently deemed to have been placed under suspension (e.g., upon a court setting aside the order for further enquiry), they are entitled to subsistence allowance for this "deemed suspension" period. However, any **earnings** gained by the official during this period (from private employment, etc.) will be deducted from the subsistence allowance.

Chapter 9: Unauthorized Absence

1. Definition and Scope (Rule 40)

Unauthorized absence is subversive of discipline and includes:

1. Absence from duty without previously sanctioned leave.
2. Overstay of sanctioned leave without prior approval for the excess period.
3. Being away from duty in excess of limits laid down in **Rule 32(2)(a)** of the CCS (Leave) Rules, 1972.

2. Administrative Action (Rules 40 & 62)

- **Rejoining Duty:** An official absent unauthorizedly will normally be allowed to rejoin duty. However, they must explain the circumstances. If the explanation is unsatisfactory, disciplinary action under CCS (CCA) Rules, 1965 may be initiated.
 - **Refusal to Rejoin:** If the official fails to rejoin despite orders, a serious view is taken, potentially resulting in major punitive action (Removal/Dismissal).
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- **Dies Non:** The competent authority may order that the days of unauthorized absence (or refusal to perform work while in office) be treated as "**Dies Non**". These days will:
 - Not count as service.
 - Not be construed as a break in service (for pension purposes, provided the forfeiture is not ordered).
 - Carry **no pay and allowances** [proviso to **FR 17(1)**].

3. Ex-Parte Proceedings for Absconding Officials (Rule 63)

If an official remains absent, overstays leave, and their movements are unknown (or they fail to reply to communications):

1. **Issue Charge Sheet:** The disciplinary authority should issue a charge sheet under **Rule 14** via **Registered A.D. letter** to the last known address.
2. **Ex-Parte Enquiry:** If the letter is returned undelivered, or if the official fails to submit a defense or appear before the Enquiry Officer, the enquiring authority is empowered to hold an **ex-parte enquiry** (enquiry in the absence of the accused).

Chapter 10: Departmental Examinations & Promotion

1. Eligibility for Exams (Rule 42)

An official under suspension or facing disciplinary proceedings **may be admitted** to departmental examinations, provided they satisfy all other prescribed conditions for admission.

2. Promotion (Sealed Cover Procedure)

The question of promotion for such officials must be decided in accordance with the "Sealed Cover" procedure instructions issued by the Government. Promotion cannot be effected while the official is under suspension or facing formal disciplinary proceedings.

Chapter 11: Disciplinary Jurisdiction & Powers

1. Competence of Authority (Rule 45)

- **Exclusive Jurisdiction:** A penalty can be imposed *only* by the prescribed punishing authority.
- **No Concurrent Jurisdiction:** An appellate authority or any authority higher than the appropriate punishing authority cannot exercise concurrent original disciplinary jurisdiction.
- **Independence of Decision:** A higher authority must not issue directions regarding the penalty to be imposed, nor should a punishing authority seek guidance or consent from a superior authority.
- **President's Power:** These restrictions do not affect the authority of the President of India to impose any penalty on any Government servant.

2. Officers Performing Current Duties (Rule 48)

An officer appointed to perform the **current duties** of a post can exercise administrative or financial powers vested in the full-fledged incumbent. However, they **cannot** exercise statutory powers derived directly from an Act of Parliament or Rules (such as the CCS (CCA) Rules) unless specifically empowered by a notification.

3. Determination of Authority (Rule 49)

- **Current Status Matters:** The disciplinary authority is determined by the official's posting at the time of the *disciplinary case*, not their posting or status at the time the offence was committed.
- **Appellate Authority:** The appellate authority is determined by the authority that imposed the penalty. Subsequent transfer of the official to a separate office is not a material consideration for determining the appellate forum.

4. Ad-Hoc Disciplinary Authority (Rule 51)

Where the prescribed appointing or disciplinary authority is unable to function (e.g., being personally concerned with the charges or a material witness), the matter must be reported to the Postal Directorate. Full details must be provided for the appointment of an **Ad-hoc Disciplinary Authority** by the President.

Chapter 12: Common Proceedings (Rule 18, CCS CCA Rules)

1. Joint Enquiries (Rule 53)

When two or more Government servants are involved in the same case, departmental proceedings should, as far as possible, be conducted by a single authority (usually the highest among the competent authorities). This ensures that evidence and defense statements are examined together.

- **Procedure:** This is governed by **Rule 18** of the CCS (CCA) Rules, 1965.
- **President's Sanction:** If the officials belong to different grades and different disciplinary jurisdictions, the President's sanction is necessary to initiate common proceedings.

Chapter 13: Medical Inefficiency & Language of Charges

1. Action Against Medically Unfit Officials (Rule 61)

- **Active Employment:** No employee is to be retained in active employment when physically or mentally unfit for the proper discharge of duty.
- **Leave vs. Duty:** If an official is in bad health, they must apply for leave. The plea of "bad health" is not an acceptable excuse for neglecting duty while on the job.
- **Medical Examination:** In appropriate cases, the employee may be sent for a medical examination to determine their fitness to continue in service, in accordance with the **Central Civil Services (Medical Examination) Rules, 1957**.

2. Language of Charge Sheet (Rule 70)

- **Official Language:** Since Hindi is the official language of the Union, the charge sheet may be served in **English or Hindi**.
- **Translation:** It is the responsibility of the delinquent official to get the document translated into another language if required for their benefit.
- **Understanding:** The authority should ensure, as far as possible, that the official fully understands the charges.

Chapter 14: Inspection of Documents

1. Timing of Request (Rule 72)

- **Pre-Enquiry:** A request for inspection of relevant documents should be made **before** the stage of formal enquiries.
- **Preliminary Statements:** If the accused requests to inspect statements of witnesses recorded during a preliminary enquiry (departmental or police) before filing their

written statement, the request should be acceded to, provided those witnesses are to be examined during the formal enquiry.

2. Right of Access (Rule 74)

The right of access to official records is **not unlimited**. The disciplinary authority may deny access if:

1. The records are not relevant to the case.
2. It is not desirable in the **public interest** to allow such access.
- **Recording Reasons:** Refusal must be sparingly exercised. Reasons for refusal must be cogent, substantial, and invariably recorded in writing.

3. Inspection Restrictions (Rules 76, 77)

- **Witness Statements:** Only the statements of witnesses proposed to be examined during the formal enquiry need to be shown. It is not obligatory to allow inspection of statements of other witnesses.
- **Minor Penalty Cases:** Under **Rule 16**, there is no statutory obligation to allow record inspection if no formal enquiry is held. However, the authority may grant permission if requested to enable the official to submit their defense.

Chapter 15: The Enquiry Officer & Proceedings

1. Selection of Enquiry Officer (Rule 85)

- **Neutrality:** Only disinterested officers should be appointed. While there is no legal bar to an immediate superior holding the enquiry, the disciplinary authority must ensure the appointee is not suspected of bias.
- **Witness Bar:** An official who is a witness in the case **cannot** be appointed as the Enquiry Officer or Presenting Officer.

2. Witness Statements (Rule 92)

Statements of witnesses recorded during the enquiry should be signed by:

1. The Witness.
2. The Accused Officer.
3. The Enquiry Officer.

This prevents the validity of the document from being questioned later²⁶.

3. Supply of Copies (Rule 93)

Copies of oral statements recorded by the Enquiry Officer should normally be supplied to the delinquent officer **before** they are called upon to make their own statement, provided a specific request is made.

4. Death of the Accused (Rule 79)

Disciplinary proceedings **abate** immediately upon the death of the alleged offender. No proceedings under CCS (CCA) Rules or Article 351-A of CSR can continue after the death of the officer.

Chapter 16: Orders and Penalties

1. Communication of Orders (Rule 99)

The officer who records the findings should generally communicate the orders under their own signature. In exceptional cases where this is not possible, the successor may communicate the decision taken by the predecessor **without modification**.

2. Effect of Withholding Increment (Rule 102)

The penalty of withholding an increment takes effect from the date the next increment accrues **after** the issue of the punishment order. It cannot affect an increment that became due prior to the order, even if it was not drawn (e.g., due to the officer being on leave).

3. De-Novo Proceedings (Rule 126)

- **Quashing of Charges:** When an appellate authority sets aside a punishment and remits the case for de-novo (fresh) trial, the original proceedings (including the charge sheet) are deemed quashed unless the order specifies the stage from which the re-trial should commence.
- **New Charges:** The disciplinary authority may frame new charges based on the original facts disclosed.

4. Review of Own Orders (Rule 130)

- **General Rule:** A punishing authority **cannot** cancel or revise its own orders. Revisions must be referred to the appellate or reviewing authority.
- **Exceptions:**
 1. If the order is **inoperative** (e.g., withholding increment of an official already at the maximum of the pay scale), it can be revised by the same authority.
 2. If the punishment was based on a criminal conviction that has been set aside by a court, the authority can cancel the punishment order.

Chapter 17: Miscellaneous Administrative Rules

1. Absence Due to Dismissal/Removal (Rule 141)

Absence of an employee from duty for more than **5 years** at a stretch, resulting from being restrained from performing duties under Government orders (e.g., in a case of removal

or dismissal that is later set aside), should **not** be treated as absence for the purpose of FR 68.

2. Maintenance of Punishment Register (Rule 145)

All officers, including non-gazetted supervisory officers possessing disciplinary powers, must maintain a **Punishment Register** in Form App. 32.

- **Content:** This register must contain particulars of punishments imposed by them and by other authorities on employees under their control.
- **Details Required:** It should show the names, designations, and pay of the employees punished, the nature of the offences, and the specific penalties imposed (e.g., dismissal, reduction to a lower post).

3. Handling of Petitions (Rule 150)

- **Petitions to Ministers:** Petitions regarding disciplinary matters addressed to the Government—specifically to the Secretary, Deputy Minister, Minister, or Prime Minister (as distinct from those addressed to the President)—**need not be entertained** and may be withheld by the lower authorities.
- **Petitions to the President:** Petitions addressed to the President of India must be forwarded to the Directorate and **cannot be withheld** by any lower authority.

4. Station Leave (Rule 152)

No employee of the Department is authorized to leave their station of posting without the **specific permission** of their immediate superior. This applies regardless of whether the employee is on duty or leave.

5. Retention of Records (Rule 154)

The records of disciplinary and appellate proceedings are of significant legal value and must be retained for a period of **25 years**.

 **LEGISLATIVE NOTE:** While the manual stipulates 25 years, the **Record Retention Schedule (RRS) of the Department of Posts** (and Appendix 13 of GFR) often classifies disciplinary files based on the penalty. Files resulting in **Major Penalties** are typically retained for **10 to 35 years** (or until the death/retirement of the official), while **Minor Penalty** files may have shorter retention (e.g., **5 years**). In case of conflict, the specific RRS for the Circle/Region usually prevails.

6. Attachment of Pay by Courts (Rule 163)

When notices of orders attaching the pay and allowances of officers are issued by Civil Courts, they are received by the following authorities:

Status of Official	Authority to Receive Notice
Gazetted Officers	The Pay and Accounts Officer (PAO) who normally disburses the salary and allowances.
Non-Gazetted Officers	The Head of Office in which the non-gazetted Officer is employed for the time being.

 **LEGISLATIVE NOTE:** Non-Attachability of Subsistence Allowance:

It is pertinent to note that under Section 60(1) of the Code of Civil Procedure, 1908, Subsistence Allowance granted to a Government servant while under suspension is exempt from attachment in execution of a court decree. Any court order purporting to attach subsistence allowance is void to that extent and should be brought to the court's notice immediately.